

25STCV17523 25STCV17523

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-07
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C07%2F07%2F2026
Source SHA-256: 7f6e7168e2d7822aceb7f6778d87b5e5afc1c238e9a6b9bc82caaebd1b4bd7d9

Case Number: 25STCV17523 Hearing Date: July 7, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ERICA JANG,

Plaintiff,

vs.

THAI PHAM, et al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 25STCV17523

[TENTATIVE] ORDER DENYING MOTION FOR ORDER
DEEMING SERVICE EFFECTIVE

Dept. 506

8:30 a.m.

July 7, 2026

On June 17, 2025, Plaintiff Erica
Jang filed this action against Defendants Thai Pham and Treasures Ticketing LLC.

Plaintiff

made six attempts to personally serve Defendants, but they no longer maintained
residences or offices at the known addresses.

(Infuso Decl., Ex. C.) Skip trace
and database searches were also unsuccessful.
(Infuso Decl. ¶ 7.)

On

October 9, 2025, Plaintiff's counsel informed Defendants that she was going to apply
to serve Defendants by publication. (Infuso

Decl. ¶ 2 & Ex. A at p. 1.) Defendant

Pham replied, "Rather than being served in the newspaper can you just serve me via
email? I can electronically Docusign it." Less than an hour later, Plaintiff's counsel sent
another email stating, "In our previous email, you indicated that you are willing
to accept service of process via email. In
accordance with that, we are now serving you with the summons and complaint

via this email.” (Infuso Decl., Ex. A at p. 3.) Plaintiff’s counsel also included a Notice and Acknowledgement of Receipt with instructions to review, sign, and return it. Defendant Pham electronically signed the Notice and Acknowledgement of Receipt.[1] (Infuso Decl., Ex. B.) “Defendant communicates exclusively through email and has not used any other form of communication during the pendency of this matter.” (Infuso Decl. ¶ 6.)

Plaintiff

now asks the Court to deem the electronic service of the summons and complaint effective as of October 10, 2026.

“If

no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court.” (Code Civ. Proc., § 413.30, subd. (a)(1).) This requires a plaintiff to “set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute.” (Code Civ. Proc., § 413.30, subd. (a)(2).)

Although

it does appear that email is reasonably calculated to give actual notice to Defendants, Plaintiff has not yet shown that she is unable to serve Defendants “by any of the methods authorized.” Plaintiff has only shown that personal service has not been possible.

Plaintiff has not attempted to serve Defendants “by each of the methods prescribed by statute,” such as by publication, service on the Secretary of State (for the LLC), or even by asking Defendants for a valid mailing address for proper mailing and Notice and Acknowledgement of Receipt.

(E.g., Code Civ. Proc., §§ 415.30, 415.50; Corp. Code, §§ 1702, 17701.16.) Without exhausting all methods of service of process,

Plaintiff is not yet entitled to an order authorizing alternative electronic service.

Accordingly,

the motion is DENIED.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 7th day of July 2026

Hon. Thomas D. Long

Judge of the Superior

Court

[1] A summons may be served

by first-class mail with two copies of the Notice and Acknowledgement and a return

envelope, postage prepaid, addressed to the sender. (Code Civ. Proc., § 415.30, subd. (a).) Service is deemed complete on the date a written

acknowledgment of receipt of summons is executed. (Code Civ. Proc., § 415.30, subd. (c).)